

Amendment No. 1 to HB2290

Terry
Signature of Sponsor

AMEND Senate Bill No. 2461*

House Bill No. 2290

by deleting all language after the caption and substituting:

WHEREAS, the Society for Assisted Reproductive Technology membership is the "gold standard" for clinics providing assisted reproductive technology; and

WHEREAS, the Society for Assisted Reproductive Technology is a standard that ensures an abundance of regulation; and

WHEREAS, the Society for Assisted Reproductive Technology clinics are committed to the highest quality standards of care; and

WHEREAS, all Society for Assisted Reproductive Technology clinics are required to advertise truthfully; and

WHEREAS, all Society for Assisted Reproductive Technology clinics accurately report outcomes so that patients can trust their provider; and

WHEREAS, all Society for Assisted Reproductive Technology clinics work with nationally accredited laboratories to assure the best possible reproductive environments; and

WHEREAS, the Society for Assisted Reproductive Technology requires:

(a) Annual submission of cycle-specific clinic outcome data to the Society for Assisted Reproductive Technology Registry, verified by the medical director, with permission to disclose such data to the public and to allow data to be validated.

Approximately eight to ten percent of reporting clinics are validated each year;

(b) Accreditation of an embryology laboratory occurs every two years by either the College of American Pathologists or Joint Commission on Accreditation of Healthcare Organizations;

(c) The medical director of any new practice must be reproductive endocrinology and infertility (REI) subspecialty certified by the American Board of Obstetrics and Gynecology, an active candidate for subspecialty certification, or grandfathered in by having been a medical director of a Society for Assisted Reproductive Technology member practice prior to January 1, 2000;

(d) All assisted reproductive technology laboratory directors to meet uniform criteria and physicians not currently laboratory directors to complete the reproductive endocrinology fellowship training in the laboratory director track, attain sufficient hands-on experience to meet American Society of Reproductive Medicine/Society for Assisted Reproductive Technology guidelines and pass a certification exam administered by the American Board of Bioanalysis;

(e) Adherence to all American Society of Reproductive Medicine/Society for Assisted Reproductive Technology guidelines, including ethical, practice, advertising, and laboratory; and

(f) Fulfillment of all financial obligations regarding dues and fees; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 1, is amended by adding the following as a new part:

68-1-2101. Part definitions.

As used in this part:

(1) "Assisted reproductive technology" or "ART" has the same meaning as defined in 42 U.S.C. § 263a-7;

(2) "Department" means the department of health;

(3) "Fertility clinic" means:

(A) A location that is considered an embryo laboratory, as defined in 42 U.S.C. § 263a-7;

(B) A location where a person is practicing assisted reproductive

technology; or

(C) A location where a person is engaging in the storage of embryos; and

(4) "Society for Assisted Reproductive Technology" or "SART" means a United States-based professional organization that sets clinical and laboratory standards for assisted reproductive technology, collects and publishes invitro fertilization success rate data from member clinics, provides patient education, provides professional guidance, and works closely with the federal centers for disease control and prevention on ART data reporting.

68-1-2102. Certification required.

(a) Each fertility clinic operating in this state shall obtain a certificate to perform assisted reproductive technology services.

(b) To receive a certificate from the department, a fertility clinic must submit the following to the department biennially:

(1) Verification of the fertility clinic's membership in SART or an equivalent organization subject to the approval of the department;

(2) An emergency plan for the transfer of embryos should the clinic close permanently for any reason; and

(3) Proof of passing the most recent laboratory inspection from either the College of American Pathologists or the Joint Commission on Accreditation of Healthcare Organizations.

68-1-2103. Clinical directors.

For a fertility clinic to operate in this state, the clinical director must:

(1) Be licensed to practice medicine or osteopathic medicine pursuant to title 63, chapter 6 or 9;

(2) Be board certified in obstetrics and gynecology by a member board of the American Board of Medical Specialties;

(3) Have successfully completed a fellowship in reproductive endocrinology and infertility accredited by the Accreditation Council for Graduate Medical Education or possess equivalent training and experience;

(4) Demonstrate substantial clinical experience in assisted reproductive technology procedures; and

(5) Maintain continuing medical education relevant to reproductive endocrinology, infertility, and assisted reproductive technology.

68-1-2104. Genetic testing.

(a) The general assembly recognizes the importance of adherence to evidence-based best practices in the provision of genetic testing services in connection with assisted reproductive technology. Fertility clinics shall follow current clinical practice guidelines and professional standards for genetic testing issued by nationally recognized professional societies or organizations in the field of reproductive medicine or obstetrics and gynecology.

(b) This section does not require compliance with any specific guideline, create a private cause of action, establish a standard of care, or serve as a basis for liability.

68-1-2105. Rules.

The department may promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.